

LECTURE KEYPOINT BY LEGBORSI TONY-FRANCIS (PhD)

Trespass to chattel.

A chattel is any property other than land and immovable property. A chattel is any moveable property. For instance, it means any article, goods, or personal property, other than land and immovable property. A chattel is any movable thing which is capable of being owned, possessed, or controlled other than a human being. cars, furniture, animal, vessel, aircraft, sea craft and anything whatsoever which is movable and capable of being owned. Trespass to chattel is any direct and unlawful interference with a chattel in the possession of another person. It is the intentional or negligent interference with the possession of the chattel of another person. Trespass to chattel can also be seen as a tort whereby the infringing party has intentionally or, negligently interfered with another person's lawful possession of a chattel. The interference can be any physical contact with the chattel in a quantifiable way, or any dispossession of the chattel whether by taking it, destroying it or barring the owner's access to it.

Purpose of the tort of trespass to chattel.

It is to protect all the chattel, goods or personal properties of a person who has title or possession by prohibiting all interference without legal justification. The tort of trespass to chattel protects the right of ownership or possession of a chattel from all wrongful interferences. Thus, the tort of trespass to chattel protects the chattels, goods, and all personal properties of a person who has title, possession, or right to immediate possession against meddling, damage, destruction, conversion, detinue, or any interference whatsoever, by any other person without lawful justification. Thus, the interest of the plaintiff which are protected by the tort are:

1. His interest in retaining the possession of the chattel
2. His interest in the physical condition of the chattel and
3. His interest in protecting the chattel against intermeddling or unlawful interference.

Trespass to chattel is actionable *per se* upon commission or occurrence without the plaintiff having to prove damage. Read up the case of *Davies v Lagos city council*

Types of Trespass to chattel.

- 1) Conversion
- 2) Detinue

Examples of trespass to chattel.

- 1) Taking a chattel away
- 2) Throwing another person's property away, such as in annoyance
- 3) Moving of goods from one place to another
- 4) Scratching, or making marks on the body of the chattel, or writing with finger in the dust on the body of a motor vehicle.
- 5) Driving another person's car without permission

In *Davies v Lagos city council*, the defendant city council granted a hackney permit to the plaintiff to operate a taxi cab, which was meant for the exclusive use of the plaintiff. The plaintiff transferred the permit to a third party, where upon the defendant council seized and detained the plaintiff taxi cab. In an action for trespass to property, Adefarasin J as he then was in the Lagos high court held that although the defendant council was entitled to revoke the permit for non-compliance with regulations, however it was not entitled to seize nor take possession of the plaintiff's vehicle. The defendant was therefore liable for trespass to chattel by seizing the plaintiff's car.

In *kirk v Gregory*, the movement of a deceased person's ring, from one room in his house to another was held to be a trespass to chattel and nominal damages was awarded against the defendant.

Elements to prove to succeed in the tort of trespass to chattel.

To succeed, a plaintiff must establish that the act of trespass was;

- 1) Intentional OR
- 2) Negligent

Persons who may sue for trespass to chattel.

The persons who may sue for trespass to chattel, provided they have possession at the material time of the inference include;

- 1) Owners
- 2) Bailee's
- 3) Lenders
- 4) Assignees, etc.

Defenses.

- 1) Inevitable accident
- 2) Justertii of that is, the title, or better right of a third party, provided that he has the authority of such third party
- 3) Subsisting lien
- 4) Subsisting bailment
- 5) Limitation of time

Remedies for trespass to chattel.

- 1) Payment of damages
- 2) Replacement of the chattel
- 3) Payment of the market price of the chattel
- 4) Repair of the damage

Conversion.

According to Salmond in his book law of tort, conversion is an act of willful interference without lawful justification with any chattel in a manner inconsistent with the right of another whereby that other is deprived of the use and possession of it.

It is the dealing with a chattel which belongs to another person in a manner that is inconsistent with the rights of the person.

It should be noted that conversion protects possession rather than ownership. This can be seen in the case of *Davies v Lagos city council* where the defendant was held liable for trespass to chattel and conversion for seizing the car.

Again, conversion is different from trespass to chattel because merely moving goods from one place to another is trespass to chattel. In *kirk v Gregory*; the movement of a deceased person's ring from one room in his house to another was held to be trespass to chattel and nominal damages was awarded against the defendant.

However, it is not conversion to merely move goods from one place to another.

Another distinction between trespass and conversion is that conversion can be committed intentionally. Whereas, trespass to chattel is either intentionally or negligently. In *Ashby v Tollhust*, a car park attendant negligently allowed a thief to drive the plaintiff's car away. It was held not to be conversion. But in *Haydon v Smith*, it was held to be a trespass for the defendant to cut and carry away the plaintiff's trees.

Again, conversion protects possession rather than ownership. It is not conversion merely to move a chattel from one place to another without any intent to take possession of it or dispute the owner's title but such act would amount to trespass to chattel.

Also, in conversion, the plaintiff need not be in actual possession of the goods or chattel at the time of the interference; it is sufficient if he had an immediate right to possession, that is, the right to demand for immediate possession of the chattel.

When identifying the tort of conversion, three things should be looked out for:

1. That the plaintiff owns or lawfully possesses personal property or item;
2. That the defendant intentionally and without authority asserts control over the item (chattel)
3. The action of the defendant should permanently or for a significant period of time deprive the plaintiff of the use of the chattel.

Types of conversion.

- 1) Conversion by taking: It is conversion to willfully take goods without lawful justification. In *Aitkem v Richardson*, it was held to be conversion for the defendant to take the plaintiff's car from where the plaintiff parked it without informing the plaintiff and return it the following day.

- 2) Conversion by destruction: By implication, intentionally, destroying or consuming the plaintiff's chattels constitutes conversion.
- 3) Conversion by using: This is when the defendant uses the plaintiff's chattel as though it was his. In *Penfold wines Ltd v Elliot*, it was conversion to use the plaintiff's wine bottle to store the defendant's wine. In the same vein, in *Petre v Heneage*, it was held to be conversion for the defendant to wear the plaintiff's jewelry.
- 4) Conversion by receiving: where a third party without lawful authority transfers the plaintiff's chattel to the defendant, the mere voluntary reception of the chattel by the defendant constitutes conversion which entitles the plaintiff to sue. The basis of liability in this tort is the fact that the defender however innocent he may be, is a party to the denial of the plaintiff's title and interference with his right to the possession of goods. However, the law admits four exceptions to this principle that a defendant who receives stolen goods shall be liable. The exceptions are;
 - a) Sale in a market overt
 - b) Sale by a mercantile agent
 - c) Acquisition of negotiable instrument
 - d) Sale by a person who has a voidable title that has not been voided
- 5) Conversion by wrongful transfer of title or possession: This implies the conversion to dispose of the goods by transfer of title or possession either through sale and delivery or pledge etc. In *CFOA v Chukwuma*, the plaintiff sent his car to the defendant company for repairs. He failed to take it for nine months. The defendant sold the car. The court held that it was conversion.
- 6) Conversion by detention: This applies where the plaintiff seizes and detains the defendant's chattel without lawful authority and without justification.

Conversion and the position of finders.

The law of tort is that a person who finds a good is entitled to possession if the owner cannot be found. Thus, a finder has a greater title than everyone else in the world except the owner. In *Bridges v Hawksworth*, the plaintiff found a wad of British pounds note on

the floor of a shop. He gave it to the proprietor of the shop to return to the owner. Several weeks later, the owner could not be found. The court held that the man who found the notes had a better title than the proprietor of the shop.

Detinue.

Here, the plaintiff has immediate right of possession to the goods; the defendant is in actual possession of the goods fails or refuses to deliver the good after the plaintiff has made a proper demand for their return.

It should be noted that refusal to surrender upon demand is a key factor in detinue. A plaintiff may claim the remedy of specific restitution. In *Udechukwu v Okwuka*, the plaintiff purchased a kit car from the defendant and after the sale left the car in the defendant's premises having told his own driver who had received the money to hand over the money to the plaintiff. In the evening the plaintiff came to collect the car and the defendant refused because he had not seen the plaintiff's driver. It was held to be detinue.

Also, an action in detinue cannot lie against a public officer carrying out a public function. In *Igbuya v Deregare*, the defendant a health officer entered the plaintiff's abattoir and seized a cow because it was not fit for human consumption. The plaintiff sued for detinue. The court held that the defendant's action did not amount to detinue. However, an action for detinue can lie against a public officer whose action is arbitrary. In *West African Education Council v koroye*, the court upheld the plaintiff's claim for detinue against the appellant who had seized his O level results.

Defences.

- 1) Subsisting bailment
- 2) Subsisting lien
- 3) Temporary retention to verify title of the plaintiff

